

Ganga Dayal v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 9 May 2014 · 2014 SCC OnLine All 6593 · Writ - C No. 26100 of 2014 · **Writ petition disposed of; application for transfer/mutation to be considered under Clause 4.44**

HEADNOTE

The transfer/mutation of an electricity connection into a new holder's name under Clause 4.44 of the U.P. Electricity Supply Code, 2005 can be done only on clearance of all arrears against the connection and on completion of the requisite formalities, the competent authority being the Executive Engineer of the Division. Where the applicant claimed the arrears had been cleared under a one-time settlement and that a co-holder had surrendered his rights, the Court directed the competent authority to consider his prescribed-form application under Clause 4.44 in accordance with law within three weeks, and, if not yet applied in proper form, permitted him to complete the formalities first.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

Transfer/mutation of a connection on clearance of arrears by the Executive Engineer

QUESTION

On what conditions, and by whom, may a connection be transferred/mutated into a new holder's name?

HOLDING

Mutation/transfer of a connection under Clause 4.44 can be done only on clearance of all arrears and completion of the requisite formalities, the competent authority being the Executive Engineer of the Division. On the applicant's prescribed-form application (arrears said to be cleared under a one-time settlement), the competent authority must consider the prayer under Clause 4.44 in accordance with law within three weeks. ¶ (order)

LIMITING FACTS

Tubewell connection originally in the names of Ram Das (deceased) and Meva Ram; Meva Ram surrendered his rights by affidavit; arrears said to be cleared under a one-time settlement.

FLAG This 9.5.2014 order is the one reproduced in SCJ-174 (Meva Ram); the two petitions concern the same tubewell connection and Clause 4.44 transfer.

PRINCIPLE TAGS

connection-transfer-requires-clearance-of-arrears-clause-4.44 A connection is transferred/mutated to a new holder under Clause 4.44 only after all arrears are cleared and formalities completed, by the Executive Engineer of the Division. ¶ (order)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS WERE IN FACT CLEARED

The Court expressly did not go into the correctness of the averment that all arrears had been cleared; that is for the competent authority to verify under Clause 4.44. ¶ (order)